

The Homestead Act of 1862 — Close Read

Read the real words of the law. Simpler English, Spanish, and a word bank are on the next pages.

How to read this (UDL). Read each numbered part **slowly**. Circle or underline any word you don't know. Jot a quick note or a ★/? in the **Notes** column. Stuck on the old-style wording? Read the **Simpler Words** page or the **versión en español**, then come back. A read-aloud is available in the app.

Example — beside Part 1 you might jot: “Who can get land? → adults & citizens.”

- 1 That any person who is the head of a family, or who has arrived at the age of twenty-one years, and is a citizen of the United States, or who shall have filed his declaration of intention to become such ... shall ... be entitled to enter one quarter section [160 acres] ... of unappropriated public lands ...
- 2 ... and who has never borne arms against the United States Government or given aid and comfort to its enemies ...
- 3 ... subject to preemption at one dollar and twenty-five cents [\$1.25], or less, per acre.
- 4 [Sec. 2.] ... the person applying ... shall make affidavit [a sworn promise] ... that said entry is made for the purpose of actual settlement and cultivation, and not ... for the use or benefit of any other person ...
- 5 ... and on payment of ten dollars [\$10], he or she shall thereupon be permitted to enter the quantity of land specified.
- 6 [Sec. 3.] ... no certificate shall be given, or patent [legal title] issued ... until the expiration of five years from the date of such entry ...
- 7 ... [the settler] shall prove by two credible witnesses that he, she, or they have resided upon or cultivated the same for the term of five years ...
- 8 ... [but] if ... [the settler] shall have ... abandoned the said land for more than six months at any time, then ... the land so entered shall revert to [go back to] the government.

NOTES / MY THINKING

Source: Homestead Act of 1862, 12 Stat. 392 (37th Cong., Sess. II, ch. 75); approved May 20, 1862. General Records of the U.S. Government, RG 11, U.S. National Archives. Verbatim excerpt; public domain.

The Same Law in Simpler Words

Same meaning, easier reading. This tells you what the law on the first page says, in shorter sentences.

- 1 In 1862, the United States Congress passed a new law called the Homestead Act. Its goal was to get people to move west and settle the land.
- 2 The law offered land almost for free. An adult could claim up to 160 acres — about the size of 120 football fields.
- 3 Not everyone could claim land. You had to be at least 21 years old, or the head of a family. You also had to be a United States citizen, or be working to become one. And you could not have fought against the United States in the Civil War.
- 4 To begin, you went to a government land office and signed an official promise called an affidavit. You promised the land was for your own family's farm, and you paid a small fee of ten dollars.
- 5 Then came the hard part. You had to live on the land and farm it for five years. Two people had to swear that you really lived there the whole time.
- 6 If you left the land for more than six months, you broke the rules and lost your claim, and the land went back to the government.
- 7 If you followed every rule for five years, the government gave you a patent. A patent is an official paper that proves the land is finally yours.
- 8 But the land was not really empty. Native nations had lived on it for generations. The law treated their homeland as “unclaimed,” and many Native families were forced off their land so settlers could build farms.

Word Bank — Palabras Clave (English / Español)

Word / Palabra	What it means	Español
homestead	a home and piece of land a family lives on and works	heredad / granja familiar
public land	land owned by the government	tierra pública
claim	to formally ask to own or use land	reclamar / solicitar
affidavit	a written promise a person swears is true	declaración jurada
citizen	a legal member of a country	ciudadano / ciudadana
cultivate	to prepare the soil and grow crops	cultivar
patent	the paper that proves you own the land	título de propiedad
unappropriated	‘unclaimed’ by the government — but often Native homeland	no asignada / no reclamada
revert	to go back to an earlier owner	revertir / regresar
dispossession	the forced loss of land or home	despojo

La Ley de Heredades (Homestead Act) — en español

Para lectores de español. Esta es la misma ley, explicada en español sencillo. Puedes leerla **antes o después** del texto original en inglés. Las palabras clave están en el Word Bank de la página anterior. (This is the same leveled text in Spanish; read it before or after the English.)

- 1 En 1862, el Congreso de Estados Unidos aprobó una nueva ley llamada la Ley de Heredades (Homestead Act). Su objetivo era que la gente se mudara al Oeste y poblara la tierra.
- 2 La ley ofrecía tierra casi gratis. Un adulto podía reclamar hasta 160 acres, casi el tamaño de 120 canchas de fútbol americano.
- 3 No cualquiera podía reclamar tierra. Tenías que tener al menos 21 años, o ser jefe o jefa de familia. También tenías que ser ciudadano de Estados Unidos, o estar tramitando la ciudadanía. Y no podías haber luchado contra Estados Unidos en la Guerra Civil.
- 4 Para empezar, ibas a una oficina de tierras del gobierno y firmabas una promesa oficial llamada declaración jurada (affidavit). Prometías que la tierra era para la granja de tu propia familia, y pagabas una cuota pequeña de diez dólares.
- 5 Después venía la parte difícil. Tenías que vivir en la tierra y cultivarla durante cinco años. Dos personas tenían que jurar que de verdad vivías allí todo ese tiempo.
- 6 Si dejabas la tierra por más de seis meses, rompías las reglas y perdías tu reclamo, y la tierra regresaba al gobierno.
- 7 Si cumplías todas las reglas durante cinco años, el gobierno te daba un patent (título de propiedad). El título es un papel oficial que prueba que la tierra por fin es tuya.
- 8 Pero la tierra no estaba realmente vacía. Las naciones indígenas habían vivido allí por generaciones. La ley trató su territorio como tierra “no reclamada,” y muchas familias indígenas fueron forzadas a abandonar sus tierras para que los colonos construyeran granjas.

Cognados que ayudan (words that look alike in both languages):

acre = acre

family = familia

citizen = ciudadano

cultivate = cultivar

government = gobierno

declaration = declaración

patent = título / patente

Native nations = naciones indígenas

Traducción de apoyo elaborada por TroopToTeacher Technologies LLC para acceso lingüístico; el texto legal original (página 1) es la fuente primaria en dominio público.

A Few Close-Read Questions (optional)

Optional. Use these if you want to check understanding — or skip them and just read and discuss. Every answer can be found in, or reasoned from, the text.

Right there

1. How many years did a settler have to live on and farm the land before they owned it? (Use the simpler version and word bank if you need them.)

Sentence starter: A settler had to live on and farm the land for ____ years.

Word choice

2. The law calls the land “**unappropriated**” (unclaimed). Who really lived there already? What does that word choice leave out?

Sentence starter: The land was really the home of _____. Calling it “unclaimed” hides that _____.

Your view

3. Do you think the Homestead Act was fair? Use **one** detail from the text to explain.

Sentence starter: I think the law was (fair / not fair) because _____.

Supports on this sheet (UDL 3.0 • CAST 2024): the real law + a 4th-grade retelling + a Spanish version + an English/Spanish word bank + cognates + a Notes column for annotation + sentence starters, plus a read-aloud in the app — so every reader has a way in. **These add to — never replace — a student's IEP/504 accommodations.**

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